Tentative Rulings for August 31, 2026
Department 7

To request oral argument, you must notify Judicial Secretary Crystal Marias at (760) 904-5722 and inform all other counsel no later than 4:30 p.m.

This court follows California Rules of Court, Rule 3.1308 (a) (1) for tentative rulings (see Riverside Superior Court Local Rule 3316). Tentative Rulings for each law & motion matter are posted on the Internet by 3:00 p.m. on the court day immediately before the hearing at Riverside Superior Court-Tentative Rulings.. If you do not have Internet access, you may obtain the tentative ruling by telephone at (760) 904-5722.

To request oral argument, no later than 4:30 p.m. on the court day before the hearing you must (1) notify the judicial secretary for Department 7 at (760) 904-5722 and (2) inform all other parties of the request and of their need to appear remotely, as stated below. If no request for oral argument is made by 4:30 p.m., the tentative ruling **will become the final ruling** on the matter effective the date of the hearing. **UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.**

For information and instructions on remote appearances via **ZOOM**, visit the court's website at Riverside Superior Court-Remote Appearances

You may also make a Telephonic Appearance: On the day of the hearing, call into one of the below listed phone numbers, and input the meeting number (followed by #):

- Call-in Numbers: 1-833-568-8864 (Toll Free), 1-669-254-5252, 1-669-216-1590, 1-551-285-1373 or 1-646-828-7666
- Meeting Number: 161 766 6465

Please **MUTE** your phone until your case is called and it is your turn to speak. It is important to note that you must call fifteen (15) minutes prior to the scheduled hearing time to check in or there may be a delay in your case being heard.

Riverside Superior Court provides official court reporters for hearings on law and motion matters only for litigants who have been granted fee waivers and only upon their timely request. (See General Administrative Order No. 2021-19-1) Other parties desiring a record of the hearing must retain a reporter pro tempore.

1.

CASE #	CASE NAME	HEARING NAME
CVRI2500906	ARREOLA VS JOHNSTON	MOTION TO COMPEL EDGAR ARREOLA'S DEPOSITION

Tentative Ruling: Defendants Halo Construction Inc. and Evan M. Johnston's Motion to Compel Deposition is denied.

While the history of this discovery matter reflects significant delays, the sequence of events immediately preceding the filing demonstrates that no justiciable dispute existed at the time the Court's jurisdiction was invoked.

The meet-and-confer process is a fundamental prerequisite of California discovery law, designed to conserve judicial resources by requiring counsel to resolve logistical and scheduling conflicts through informal dialogue. Defense counsel declares she attempted to contact Plaintiff's counsel on July 9, July 10, and July 15, 2026, to discuss the repeated nonappearances.

The evidence demonstrates a critical turning point on July 15, 2026. On that day, an assistant from Plaintiff's counsel's office contacted Defense counsel, and the parties reached a mutual, successful agreement to reschedule the deposition for August 26, 2026.

Having successfully reached an agreement on July 15 to resolve the scheduling conflict, Defense counsel nevertheless executed the current Motion to Compel that same day and filed it on July 16, 2026. In her supporting declaration, Counsel offers a "placeholder" rationale for this filing, stating: "given that this pattern of conduct has been consistent with Plaintiff's past behavior, Defense counsel will be moving forward with filing a Motion to Compel. If Plaintiff appears for the deposition on the agreed-upon date of August 26, Defense counsel will move to take the Motion off calendar." This statement constitutes a direct admission in a sworn declaration that the motion was filed for the purpose of leverage, notwithstanding a pre-filing agreement.

A discovery motion is only appropriate when a dispute is "ripe"—meaning judicial intervention is the necessary and only remaining remedy. Under Code of Civil Procedure ("CCP") § 2025.450(b)(2) and § 2016.040, a motion to compel must be accompanied by a declaration showing a reasonable and good-faith attempt at an informal resolution. As established in *Leko v. Cornerstone Building Inspection Serv.* (2001) 86 Cal.App.4th 1109, 1124, the law mandates that counsel attempt to resolve such issues by rescheduling. (Also, under CCP § 2023.020, the court shall impose a monetary sanction on any party or attorney who fails to confer in good faith, regardless of whether they ultimately win or lose the underlying motion to compel.)

The July 15, 2026, rescheduling agreement is dispositive. Because the parties successfully resolved the date conflict *before* the motion was filed on July 16, there was no actual, existing discovery dispute for the Court to adjudicate. The legal requirement for a "good faith attempt" at informal resolution implicitly requires that if such an attempt is *successful*, no motion shall be filed.

The Court finds that Defense counsel's declaration of meet and confer was essentially made in bad faith. By acknowledging a resolution had been reached on July 15 while simultaneously filing a motion on July 16 to compel that same appearance, Defendants sought to use the Court's calendar as a tool for intimidation and leverage. Preemptive or "placeholder" motions are an improper discovery practice and place an unnecessary burden on judicial resources. Defense counsel is formally admonished, the preemptive filing of this motion after a resolution had already been achieved, or the use of the Court's jurisdiction to "police" potential future non-compliance is an abuse of the discovery process. (CCP §2023.010.)

2.

CASE #	**CASE NAME**	**HEARING NAME**
CVRI2505749	SAYRE VS SUDWEEKS CONSTRUCTION, INC.	MOTION TO COMPEL FURTHER RESPONSE TO REQUEST FOR PRODUCTION, SET ONE FROM DEFENDANT SUDWEEKS CONSTRUCTION FURTHER RESPONSE TO REQUEST FOR PRODUCTION OF DOCUMENTS, SET ONE

Tentative Ruling: Plaintiff's Motion to Compel Further Response to Request for Production of Documents (Set One) No. 17 is granted; Defendant Sudweeks Construction, Inc. must produce further, verified, Code-compliant responses, without objection, to Request for Production of Documents No. 17 within 30 days of this order.

As to Sanctions, Plaintiff is awarded AGAINST Defendant Sudweeks in the reasonable reduced amount of $1,560.00 (3 hours at $550/hour and filing fees), payable within 30 days.

A party may move to compel a further response to an RFP where the responding party's statement of compliance is incomplete, a representation of inability to comply is inadequate, or "an objection in the response is without merit or too general." (CCP § 2031.310(a).) The moving party must "set forth specific facts showing good cause justifying the discovery sought by the demand." (CCP § 2031.310(b)(1).) Once the moving party makes a fact specific showing of relevance, good cause is established, and the burden shifts to the responding party to justify each objection. (*Kirkland v. Sup. Ct.* (2002) 95 Cal.App.4th 92, 98.)

Plaintiff has met his threshold burden of showing good cause. RFP No. 17 targets the very documents that establish the elements of Plaintiff's prevailing wage claims—*i.e.*, the contract coverage requirement under Lab. Code §§ 1771 and 1774, the bid advertisement date that fixes the applicable prevailing wage determination, and trade classification and damages. That is a "fact-specific showing of relevance," which satisfies the good cause requirement and shifts the burden to Sudweeks to justify each of its objections. (*Kirkland*, *supra*, 95 Cal.App.4th at 98.)

Sudweeks has not carried that burden. Its March 2, 2026 response consisted entirely of boilerplate objections, including relevance, overbreadth, third-party privacy, confidentiality, “no compelling need,” and burden, with no statement of compliance and no agreement to produce. (Donahoo Decl. ¶ 4, Ex. 2.) Sudweeks’ opposition does not substantively defend the objections asserted in its March 2, 2026 response. No burden declaration, no privilege log, and no specific privacy or proprietary interest is identified in the opposition papers. Well-established authority also recognizes that corporations have, at most, a lesser right of privacy than natural persons and cannot claim equality with individuals in the enjoyment of that right. (*Roberts v. Gulf Oil Corp.* (1983) 147 Cal.App.3d 770, 795–96.)

To the extent confidentiality remains a concern, the stipulated protective order Plaintiff offered would appear adequate to address it. Sudweeks’ ultimate production of 362 pages of contract material in a single supplemental response on July 24, 2026 further indicates that the documents can, in fact, be located and produced, which undermines the boilerplate objections that were originally interposed. Good cause is therefore established, and Sudweeks’ objections are overruled.

Mootness
Sudweeks argues that the July 24, 2026 production, together with the pre-motion summary spreadsheet identifying bid dates, contract dates, and bond information, moots the motion. That argument fails for three reasons.

First, Sudweeks produced nothing responsive to RFP No. 17 until three weeks after Plaintiff filed the motion, and roughly seven months after service of the request. Under *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, post-filing production does not deprive the Court of authority to rule on the motion or to award fees where the motion appears to have been the catalyst for the production. (*Id.* at 409.) Denying as moot on this record would reward the belated compliance and effectively penalize Plaintiff for filing the motion that produced the documents.

Second, the supplemental response is not fully Code-compliant. Rather than an unqualified statement of compliance under CCP § 2031.220, it produces documents “[s]ubject to and without waiving the foregoing objections.” (Channah Decl. ¶ 17, Ex. B.) That conditional, objection-preserving formulation leaves the response “incomplete” and preserves objections that appear “without merit or too general”—the very defects section 2031.310(a) authorizes the Court to correct. (CCP § 2031.310(a).) Plaintiff is therefore entitled to a further, verified response that states unqualified compliance and withdraws the previously asserted objections.

Third, neither of Sudweeks’ productions cures the underlying deficiency in its response to RFP No. 17. The June 24, 2026 one-page spreadsheet identifies only “the bid dates for those projects applicable to bids, bond surety companies, bond amounts, and contract dates.” (Channah Decl. ¶ 12.) That summary data cannot establish the specific contractual terms—scope of work, incorporated general and special conditions, identity of awarding bodies, and bid advertisement dates—needed to prove contract coverage, trade classification, and damages under the prevailing wage statutes.

As to the July 24, 2026 supplemental production, while it consists of contract materials, Sudweeks unilaterally redacted portions of those documents without producing a privilege log or otherwise justifying the redactions in its response. (*Id.* at ¶ 17, Ex. B.) Sudweeks explains that the redactions concern bond information it views as responsive to RFP No. 20 rather than RFP No. 17, but that explanation does not resolve the deficiency. In any event, CCP § 2031.240(b) provides that when a party objects to producing part of an item, the response must "[i]dentify with particularity any document . . . falling within any category of item in the demand to which an objection is being made" and "[s]et forth clearly the extent of, and the specific ground for, the objection." (CCP § 2031.240(b)(1)–(2).) Sudweeks' response does neither. The motion therefore is not moot.

SANCTIONS
CCP § 2031.310(h) requires the Court to impose a monetary sanction on any party or attorney who unsuccessfully opposes a motion to compel a further response, unless the Court finds that the party acted with substantial justification or that other circumstances make sanctions unjust. (CCP § 2031.310(h).) A responding party's belated, post-motion production does not automatically moot a motion to compel or foreclose a sanctions award; the Court retains discretion to grant the motion and award fees where the belated production appears to have been prompted by the filing itself. (*Sinaiko*, *supra*, 148 Cal.App.4th at 409.)

Sudweeks did not act with substantial justification. Its objections were unsupported by any declaration, privilege log, or identified privacy or proprietary interest, and it produced the responsive contracts only after Plaintiff filed the motion. Monetary sanctions in favor of Plaintiff are therefore appropriate.

Plaintiff requests $3,360.0; Plaintiff's counsel declares an hourly rate of $825, based on more than 29 years of practice with particular expertise in prevailing wage claims under Lab. Code § 1770 *et seq.*, and reports four (4) hours on this motion—2.5 hours preparing the motion, memorandum, declaration, and separate statement; 1 hour on the reply; and 0.5 hour for the hearing—plus a $60 filing fee. (Donahoo Decl. ¶ 11.) Court awards $1,560.00 (3 hours at $550/hour and filing fees).

Sudweeks' cross-request for $4,810.00 is denied. Sudweeks did not comply with section 2023.040, which requires a separate notice of motion identifying the persons against whom sanctions are sought. (CCP § 2023.040.) In any event, Sudweeks, not Plaintiff, is the party who unsuccessfully opposed the motion within the meaning of section 2031.310(h), and is therefore the party subject to sanctions.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2601231	THOITS VS OREMOR OF RIVERSIDE GM LLC	DEMURRER

Tentative Ruling: Defendant's Demurrer is overruled.

The function of a demurrer is to test the legal sufficiency of a pleading, but not the truthfulness of the allegations. (*Donabedian v. Mercury Ins. Co.* (20040 116 Cal.App.4th 968, 994.) In a demurrer proceeding, the defects must be apparent on the face of the pleading or via proper judicial notice. (*Id.*) Demurrers for failure to state a cause of action are commonly referred to as “general” demurrers. (*McKenney v. Purepac Pharmaceutical Co.* (2008) 167 Cal.App.4th 72, 77.) All other grounds for demurrers are referred to as “special demurrers.” (*Collins v. Rocha* (1972) 7 Cal.3d 232, 239.)

MCAC argues causes of action five (fraud) and six (negligent misrepresentation) fail. Defendant asserts Plaintiff bases her fraud and negligent misrepresentations claims upon a purported statement made by MCAC’s technician that the Vehicle needed a new engine and failed to complete warranty repairs to the engine. Defendant explains TAG Warranty was the entity that denied coverage for the engine repair, not Defendant. Thus, the FAC allegations do not establish MCAC’s intent to defraud or that it made any negligent misrepresentation. Defendant complains Plaintiff has failed to provide any factual support for her allegations.

In opposition, Plaintiff maintains the causes of action are sufficiently pled, referencing specific allegations in the FAC. Plaintiff argues the demurrer recasts the fraud cause of action as though it depended entirely on which entity denied full warranty coverage. The elements of a cause of action for fraud are: (1) misrepresentation or concealment, (2) knowledge of falsity (scienter), (3) intent to deceive and induce reliance, (4) justifiable and actual reliance, and (5) resulting damage. (*Robinson Helicopter Co. v. Dana Corp.* (2004) 34 Cal.4th 979, 990.)

Negligent misrepresentation, which is a form of deceit, is a separate and distinct tort from general negligence and each cause of action has different elements. (*Bock v. Hansen* (2014) 25 Cal.App.4th 215, 227-228; citing *Bily v. Arthur Young & Co.* (1992) 3 Cal.4th 370.) The elements for a claim of negligent misrepresentation are: (1) misrepresentation of a past or existing material fact, (2) without reasonable ground for believing it to be true, and with intent to induce another’s reliance on the fact misrepresented; ignorance of the truth and justifiable reliance on the misrepresentation by the party to whom it was directed; and resulting damage. (*Hasso v. Hapke* (2014) 227 Cal.App.4th 107, 127.)

Fraud and negligent misrepresentation must be pleaded with particularity, that is, the pleading must set forth how, when, where, to whom, and by what mean representations were made. (*Foster v. Sexton* (2021) 61 Cal.App.5th 998, 1027-1028.) However, less particularity is required where the defendant has superior knowledge of the facts. (*Committee on Children’s Television, Inc. v. General Foods Corp* (1983) 35 Cal.3rd 197, 216; *Okun v. Superior Court* (1981) 29 Cal.3rd 442, 458.)

Here, the FAC alleges an authorized agent and salesperson of Riverside Chevrolet represented that the Vehicle was in excellent mechanical and roadworthy condition and that the Chevy Care Plan/Warranty provided comprehensive “bumper-to-bumper” coverage for all mechanical issues and future repairs. (FAC ¶¶20, 69.) When the check engine light illuminated on June 17, 2025, MCAC, an authorized GM/Chevrolet dealership, inspected the Vehicle. (*Id.* at ¶27.) “At MCAC, service personnel initially confirmed and assured that the Vehicle was covered under the Chevy Care plan. This assurance was given despite the Vehicle being slightly beyond the original manufacturer’s warranty mileage period, and led Plaintiff to believe the necessary repairs would be handled and covered appropriately under the Chevy Care Plan.” (*Id.* at ¶28.) Thereafter, MCAC tech Edward Brady told Plaintiff, “[Y]ou need a new engine” but that the engine “would not be covered unless approved by the warranty company GM Warranty.” (*Id.* at ¶¶29-30.) It is alleged “Riverside Chevrolet and Tag Warranty represented, through the authorized agent/salesperson acting within the course and scope of his/her employment, that the Chevy Care plan would cover all mechanical breakdowns and repairs required during the warranty period” and that Defendants knew these statements were false. (*Id.* at ¶¶70-71, emphasis added.) Defendants made these representations with the intent to induce Plaintiff to execute the RISC, and Plaintiff reasonably relied on such representations, incurring damages. (*Id.* at ¶¶72-74, 77-79.) The FAC specifies that “MCAC, acting as an authorized agent of GM/Chevrolet dealership and repair facility, knowingly participated in and facilitated the wrongful denial of Plaintiff’s warranty claim, without completing a full inspection regarding Plaintiff’s rights. (*Id.* at ¶76.)

Accordingly, the FAC sufficiently alleges that MCAC’s agent represented the engine would be covered and thereafter denied coverage without completing inspection.